SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 849 of 2019 (YEAR: 2019)

CORAM: R. BANUMATHI, INDIRA BANERJEE

Bir Singh
... Appellant(s) / Petitioner(s)
Versus
Mukesh Kumar
... Respondent(s)

Acts Referred:	Negotiable Instruments Act, 1881
Sections:	Section 138 NI Act, Section 139 NI Act

JUDICIAL HEADNOTE & SUMMARY

Reiterated that signature on the cheque being undisputed triggers the statutory presumption in favor of the payee, irrespective of who filled the contents.

RATIO DECIDENDI

The Court held that: Reiterated that signature on the cheque being undisputed triggers the statutory presumption in favor of the payee, irrespective of who filled the contents. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Bir Singh v. Mukesh Kumar (Criminal Appeal No. 849 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Negotiable Instruments Act, 1881, particularly Section 138 NI Act, Section 139 NI Act. Reiterated that signature on the cheque being undisputed triggers the statutory presumption in favor of the payee, irrespective of who filled the contents.

OPERATIVE ORDER

ORDER: Decided